

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ABIGAIL RODRIGUEZ MONTECINO,

Petitioner

VS.

MARK YAP MONTECINO,

Respondent

) Case Number: FDI-25-801374

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER RE: SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Abigail Rodriguez Montecino and Respondent Mark Yap Montecino. They married on 5/30/17. Per the Petition filed 5/9/25, Petitioner contends the parties separated on 12/4/24, for a marriage of 7 years and 6 months. Per the Response filed 6/20/25, Respondent contends the parties separated on 1/9/22, for a marriage of 4 years and 7 months. The parties have no minor children in common.
- 2) On 10/8/25, Petitioner filed a Request for Order filed seeking \$3,200 in temporary spousal support. The matter was set for hearing on 11/20/25.
- 3) On 11/17/25, Petitioner submitted a Request to Enter Default and a proposed True Default Judgment in this matter, but Respondent filed a Response to the Petition on 6/20/25, which precludes entry of his default.
- 4) At the prior 11/20/25 hearing (see Findings and Order After Hearing (FOAH) filed 12/11/25), the Court continued the hearing to 3/3/26 because Petitioner failed to file an Income and Expense

1 Declaration (form FL-150) and there was no Proof of Service on file for Petitioner's Request for
2 Order. As such, the Court ordered Petitioner to:

- 3 a. File and serve an Income and Expense Declaration (form FL-150);
 - 4 b. Have Respondent served with her Request for Order filed 10/8/25, Income and Expense
5 Declaration (form FL-150), a blank Responsive Declaration (form FL-320), a copy of the
6 Tentative Ruling Instructions, and a copy of the Findings and Order After Hearing for the
7 11/20/25 hearing date; and
 - 8 c. File a Proof of Service evidencing compliance with the orders set forth above.
- 9 5) On 1/20/26, Petitioner filed an Income and Expense Declaration (form FL-150) indicating she
10 earns an average monthly salary of \$2,729.30, pays \$164.91 in health insurance premiums, pays
11 \$2,985 in average monthly expenses, and estimates Respondent earns \$13,750 in average
12 monthly income based on "incoming checks from portal healthcare."
- 13 6) On 2/27/26, Petitioner filed an Affidavit of Unsuccessful Service attached to which is a
14 Declaration of Diligence.
- 15 7) At the prior 3/3/26 hearing, Petitioner appeared in pro per, and Respondent did not appear.
16 Petitioner advised the Court she filed a Proof of Service on 2/27/26 and requested a continuance.
17 Accordingly, the Court made a finding of good cause to continue the matter to 5/19/26. Petitioner
18 was ordered to serve the continuance order on Respondent via mail as required by Code of Civil
19 Procedure section 1005(b).
- 20 8) On 4/11/26, the Court filed a Proof of Service by Mail indicating the FOAH on 3/3/26 was mailed
21 to both parties on 3/11/26. The Court served Respondent at the address listed on his Response and
22 Request for Dissolution.
- 23 9) On 4/22/26, Petitioner filed a Proof of Service by Mail indicating she served the following
24 documents on Respondent by mail on 4/14/26: (a) Income and Expense Declaration (form FL-
25 150); (b) blank Responsive Declaration (FL-320); (c) Request for Order (FL-300) and Tentative
26 Ruling Instructions; and (d) FOAH on 11/20/25.
- 27 10) Respondent did not file a Responsive Declaration or Income and Expense Declaration.

28 **B. Findings and Order**
29

- 1) The Court finds proper service was effectuated – i.e., Respondent has notice of the 5/19/26 hearing – based on the Court’s 4/11/26 Proof of Service and Petitioner’s 4/22/26 Proof of Service.
- 2) Given that Respondent failed to file a Responsive Declaration and Income and Expense Declaration, the Court further finds good cause to: (a) GRANT Petitioner’s unopposed request for temporary spousal support; and (b) use Petitioner’s estimation for Respondent’s income as listed on her Income and Expense Declaration, which she signed under penalty of perjury (\$13,750 in average monthly income based on “incoming checks from portal healthcare).
- 3) As such, in accordance with the XSpouse report attached hereto and incorporated herein, Respondent shall pay Petitioner \$946 in guideline temporary monthly spousal support by the 1st of every month, effective 10/8/25 (i.e., the date on which Petitioner filed her Request for Order). The first payment shall commence on 6/1/26.
- 4) The XSpouse report is based on the following findings:
 - a. Per Petitioner’s pay stubs attached to her Income and Expense Declaration:
 - i. Petitioner earns an average monthly salary of \$7,732.53 (\$3,568.86 gross biweekly).
 - ii. Petitioner pays \$313.62 in monthly health insurance premiums (\$144.45 biweekly).
 - iii. Petitioner pays \$231.98 in retirement (\$107.07 biweekly).
 - b. Per section 4 of Petitioner’s Income and Expense Declaration, Respondent earns \$13,750 in average monthly income based on “incoming checks from portal healthcare.”
- 5) Respondent owes Petitioner \$7,323 in temporary monthly spousal support arrears for the period of 10/8/25 – 5/31/26 (\$701 for October 2025 + \$6,622 for November 2025 – May 2026 (\$946 x 7). Respondent shall pay an additional \$250 per month until this balance is paid in full.
- 6) The Court reserves jurisdiction over the spousal support orders made herein retroactive to 10/8/25.
- 7) The Court will prepare the Findings and Order After Hearing.

2026**Fixed Shares**

	Husband	Wife
Number of children	0	0
Percent time with NCP	0.00%	0.00%
Filing status	MFSIN	MFSIN
Number of exemptions	1	1
Wages and salary	13750	7732
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	231
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	0	313
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Husband	9215
Wife	5480
Total	14695
Support	
Addons	0
Guideln CS	0
S.Clara SS	946
Total	946
-	

Settings changed**Proposed****Tactic 9**

CS	0
SS	946
Total	946
Saving	0
Releases	0

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	14695	14695
Percent change	0%	0%

Husband

Payment cost/benefit	-946	-946
Net spendable income	8269	8269
Change from guideline	0	0
% of combined spendable	56%	56%
% of saving over guideline	0%	0%
Total taxes	4535	4535
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	8955	8955

Wife

Payment cost/benefit	946	946
Net spendable income	6426	6426
Change from guideline	0	0
% of combined spendable	44%	44%
% of saving over guideline	0%	0%
Total taxes	1939	1939
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	5270	5270

Husband pays Guideline SS, Proposed SS

FC 4055 checking: **ON****Per Child Information**

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 0	0	0	0 Husband	0 Husband	0 Husband